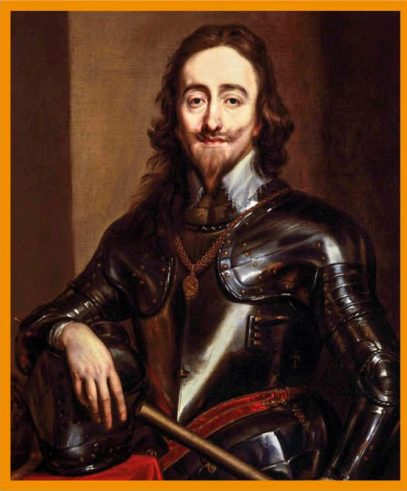


See also: The Assize of Clarendon 64–65 ■ Magna Carta 66–71 ■ The Glorious Revolution and the English Bill of Rights 102–103 ■ The Declaration of the Rights of Man 118–119 ■ The Universal Declaration of Human Rights 222–229



to a head on January 3, 1642, when Charles attempted to arrest five Members of Parliament, and the Speaker of the House defied him.

Civil wars and trial

A series of three civil wars from 1642 to 1651 ended in triumph for the Parliamentarians under Oliver Cromwell, albeit at a cost of 200,000 lives. Charles was placed under arrest in 1646, and in 1648, Parliament was purged of any members opposed to putting the king on trial, resulting in what became known as the Rump Parliament. Supported by Cromwell's New Model Army (a reformed army with improved military resources), the Rump declared itself the supreme power, with authority to pass laws without the backing of the monarch or the House of Lords.

One of the Rump's first acts was to pass an ordinance on January 1, 1649, setting up a High Court of Justice to try Charles on charges of waging war on Parliament and against his own people. There was no precedent in English law to try a king, so Dutch lawyer Isaac

This portrait of Charles I is by Flemish artist Anthony Van Dyck, who became principal painter to the king in 1632. Charles was passionate about art and commissioned many royal portraits.

Dorislaus, who wrote the indictment, based it on an ancient Roman law that a military body (or government) had the right to overthrow a tyrant.

The trial began on January 20, 1649, but without the full support of the judiciary—of the 135 men nominated to sit in judgment, only 68 attended. Charles repeatedly refused to accept the validity of the court, arguing that a parliament that had been purged of opposition could not claim to represent the people. On January 27, he was found guilty of being a tyrant, a traitor, a murderer, and an enemy to England and was sentenced to death. He was publicly executed at Whitehall, London, on January 30.

Monarchy restored

The execution of Charles I allowed Oliver Cromwell to take power as Lord Protector—serving as both

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I do stand more for the liberty of my people, than any here that come to be my pretended judges.

Charles I

”

head of state and the head of the government from 1653 to 1658. However, the new regime did not bring political stability, as Cromwell clashed with his parliament and was heavily reliant on the army for support, and public disaffection grew. When Cromwell died in 1658, his son, Richard, succeeded him as Lord Protector, but soon resigned. In 1660, Charles II was restored to power. Those who had committed regicide by signing Charles I's death warrant were put to death. ■

The Petition of Right

The difficult relationship between Charles I and his parliament is exemplified by the 1628 Petition of Right issued by Parliament. This stemmed from the “forced loan” that Charles had pushed through after Parliament refused his request to grant a tax to fund war with Spain. The forced loan meant Charles's subjects were compelled to “gift” the Crown money or face imprisonment. Parliament saw this as going against Magna Carta and so drafted the Petition of Right to

reassert the rule of law and to confirm the rights of free men and Parliament. The format of the petition was crucial, in that it reasserted existing rights as opposed to creating new ones.

Charles reluctantly agreed to the petition, recognizing that he needed Parliament's support to raise any further taxes. He went on to ignore it in principle—but the fact that the Crown had accepted the petition gave it the same constitutional importance as Magna Carta itself.